

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS MOTION FOR EXTENSION OF TIME TO ANSWER OR
OTHERWISE RESPOND TO COMPLAINT**

Pursuant to Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), Respondents Amazon.Com Services LLC, Amazon Logistics Inc., and Beijing Century Joyo Courier Service Co., Ltd. hereby move for an extension of their time to answer or otherwise respond to the Complaint/Amended Complaint in this proceeding until March 26, 2025.

Although only one of the three Respondents has yet received service, and although an amended complaint was placed on the Commission's docket on January 28, 2025 but has not yet been acted upon or served, this motion is being filed today in an abundance of caution given the provision of Rule 102(a) that motions are to be filed at least seven (7) days before the scheduled filing date unless reasonable grounds are found for the failure to meet this requirement. While the date for response given the amended complaint is unclear, the motion is being filed now to avoid any potential question as to timing. The March 26, 2025 date is calculated as 30 days from the date an answer to the amended complaint docketed January 28, 2025 would be due were it considered served that day.

Respondents have conferred with Complainant's counsel, who was generally amenable to an extension but stated that obtaining client consent might be delayed given the Chinese Lunar New Year. Again, although that position has not yet been received, Respondents are filing today to avoid any question as to timeliness, and can update as to the conferral when it is completed.

The grounds for the Motion are as follows:

1. The original complaint in this action is dated January 9, 2025, and was docketed and marked served by the Secretary on January 17, 2025;
2. Only one of the three Respondents has received that service for the original complaint, and the others have been unable to confirm service;
3. The original complaint sets forth four separate causes of action, including two that in undersigned counsel's experience are rarely pled, and will require time to investigate and respond;
4. An amended complaint with an additional cause of action that is also rarely pled was put on the docket January 28, 2025 and has not yet been served;
5. Communications with Beijing Century Joyo Courier Service Co. Ltd. are limited by the Chinese Lunar New Year; and
6. The complaint does not seek any form of expedited relief and the extension will not prejudice any party.

Respondents respectfully submit that the aforesaid constitutes good case for an order extending the time to answer or otherwise respond to the complaint to and including March 26,

2025. As stated above, Respondents have proposed this date to Complainant's counsel who has agreed to present it to his client.

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Respectfully submitted,

_____/ s_ John Longstreth_____
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Counsel for Respondents

February 4, 2025

CERTIFICATE OF SERVICE

I certify that on this 4th day of February, 2025 the aforesaid motion has been filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following parties of record, as provided by the Initial Order in this proceeding.

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_____/ s_ / John Longstreth_____
John Longstreth